



Appeal Decision

Site visit made on 6 July 2026

by **P B Jarvis DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 24 August 2026

Appeal Ref: 6010567

Castleton, Days Lane, Doddinghurst, Essex CM15 9SL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 against a refusal to grant planning permission.
 - The appeal is made by Mr Chris Brown against the decision of Brentwood Borough Council.
 - The application Ref. is 26/00233/HHA.
 - The proposed development is erection of detached outbuilding to provide a home gym and shower facilities incidental to the main dwelling house.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. The policies relevant to this appeal have not materially changed therefore further comments have not been invited from the parties and it is not considered that any prejudice arises as a result. The decision below refers to the decision-making policies of the new Framework.

Main Issues

3. The main issues are
 - Whether the proposal is inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies.
 - Effect on Green Belt openness
 - The effect on the setting of the Grade II listed Days Farmhouse
 - Whether any harm by reason of inappropriateness and any other harm would be outweighed by other considerations as so to amount to the very special circumstances necessary to justify the development

Reasons

4. The appeal site lies in a rural location to the south of the built-up area of Doddinghurst village and north of Pilgrims Hatch within the Metropolitan Green Belt. It is a large roughly triangular shaped plot with established trees and hedges to boundaries with a woodland area to the south. It lies at the southern end of a row of large, detached properties of varying age and design set in similarly deep plots.

Whether inappropriate development

5. Policy MG02 of the Brentwood Local Plan 2016-2033 (2022) (LP) seeks to preserve the openness and key functions of the Green Belt by preventing inappropriate development except in very special circumstances. It states that proposals will be considered and assessed in accordance with the provisions of national planning policy. Framework Policy GB7 states that development in the Green Belt is inappropriate unless within one of the listed categories. These do not include new detached outbuildings.
6. However, category (b) of GB7 states that the extension or alteration of an existing building, provided it is of permanent and substantial construction, is lawful in planning terms and will not result in a disproportionate increase in size compared to the original building, will not be inappropriate. The existing dwelling is of permanent and substantial construction and the Council does not suggest that it is not lawful in planning terms.
7. Case law has established that extensions to an existing building will not be confined to physically attached structures but can include structures which are physically detached from the building of which they are an extension¹. Whether a detached structure would amount to an extension of the existing building is a matter of fact and degree.
8. Case law has also established that it would be reasonable to take into account whether the proposal was a 'normal domestic adjunct'.² In addition, consideration could be given to its purpose and use, its relationship with the original building and its size. In this case, the proposed outbuilding would be a 'normal domestic adjunct' and it would be sited close to and used for purposes incidental to the existing dwelling. Therefore, it can be considered to comprise an extension to the dwelling.
9. However, the original dwelling has been previously extended resulting in an approximate doubling of its size in respect of floorspace. The proposal would add a further 30 sqm. resulting in a dwelling around 140% larger than the original. Whilst the proposed building itself would be of subservient scale and size compared to the existing dwelling and would be sited close to it within its curtilage, given the increase in floorspace compared to the original dwelling, it would nevertheless result in a disproportionate increase in its size. As such, the proposal would not satisfy policy GB7(b) of the Framework and constitutes inappropriate development in the Green Belt.
10. I note that the Council has referred to a previously existing garage on the site but there was no such building at the time of my site visit and the proposal cannot therefore be considered as the replacement of an existing building.

Effect on green belt openness

11. The Framework states that the government attaches great importance to Green Belts the essential features of which are their openness and permanence. Openness is the absence of development notwithstanding the degree of visibility of the land in question from the public realm. Openness has both visual and spatial aspects.

¹ Warwick DC v SSLUHC, Mr J Storer Y Mrs A Lowe [2022] EWHC 2145 (Admin)

² Sevenoaks DC v SSE & Dawe [1997]

12. The proposed single storey building would occupy a relatively discrete location to the side of the existing dwelling behind a fence that marks the boundary between the front and side areas of the curtilage of the property. Whilst it would be screened to an extent from public views along the main road the roof would be visible above the fence. However, it would be viewed in the context of the much larger and higher existing dwelling and would not be viewed as an isolated building. As such it would have a limited visual impact on the openness of the Green Belt.
13. In spatial terms the building would be significantly smaller than the existing building on the site but would nevertheless introduce an outbuilding that would reduce the spatial aspect of the openness of the Green Belt; however, this would only be to a very limited degree.
14. Overall, having regard to the existing context of the site and its location within a group of existing dwellings, Green Belt openness would be preserved.

Effect on setting of the nearby heritage asset

15. Days Farmhouse, a Grade II listed property lies opposite the site on the eastern side of Days Lane. It is of 16th century origin, with 17th and 20th century elements, comprising a timber framed, two-storey dwelling of part rendered, part weatherboarded elevations with peg tiled roof. It occupies a large plot with outbuildings to the north and further farm and other buildings to the north-east and east beyond which are open fields. There is an existing vehicular entrance just to the north-west of the dwelling marked by timber gates with high hedge along the remainder of the lane frontage. The significance of the asset is derived mainly from its architectural quality and historical associations with its rural and agricultural context.
16. The proposed outbuilding would be sited some distance from the listed building on the opposite side of the lane, located to the south side of the existing dwelling, Castleton, set back from the road frontage which is also partly marked by mature vegetation. The Council acknowledges that the proposed outbuilding would only be partly intervisible with the listed farmhouse and that would only be from limited viewpoints along Days Lane quite close to the appeal site frontage where only the upper part and roof of the proposed outbuilding would be seen above the fence.
17. During the determination of the application, the previously proposed flat roof was replaced with a hipped, tiled roof, not dissimilar to the roof forms of the outbuildings to the north of the listed farmhouse. Given these design changes, its discrete position, taken together with the acknowledged limited intervisibility, the outbuilding would have a neutral effect on the significance of the heritage asset and, as such, its setting would be preserved. The duty under S66 of the Planning (Listed Buildings and Conservation Areas) Act 1990 would therefore be satisfied. There would be compliance with LP Policy BE16, which seeks to preserve designated heritage assets and their setting, and with policies HE4 and HE6 of the Framework which seek to ensure that heritage assets are conserved in a manner appropriate to their significance.

Whether harm outweighed by other considerations

18. As found above, the proposed development comprises inappropriate development in the Green Belt which is by definition harmful. Substantial weight is to be given to this harm in accordance with Framework policy GB6. Very special circumstances

will not exist unless the harm by reason of inappropriateness and any other harm is clearly outweighed by other considerations.

19. The appellant contends that the proposed outbuilding would be modest in size, contained within the residential curtilage, not result in encroachment of the countryside, would be of suitable design and subservient in scale compared to the existing dwelling, nor result in harm to green belt openness or the character and appearance of the site and surroundings. However, these factors are of neutral weight and do not alter my findings above in respect of inappropriateness having regard to the factors that are relevant to that assessment as set out.
20. The appellant also suggests that the harm arising from inappropriateness, should that be found, would be limited. However, that conflicts with the Framework which directs that any Green Belt harm is to be given substantial weight.
21. The appellant agrees that there is no relevant fall-back position as permitted development rights have been removed by virtue of a condition on an earlier permission.
22. Overall, these factors do not clearly outweigh the harm by reason of inappropriateness. Therefore, very special circumstances have not been demonstrated. The proposal would fail to accord with LP Policy MG02 and with the development plan as a whole. It would also fail to comply with the policies of the Framework. There are no other material considerations that indicate a decision other than in accordance with the development plan.

Conclusion

23. The appeal is therefore dismissed.

P B Jarvis

INSPECTOR